

Minutes from 3/25/25 (the “Deemed Admitted Order”). The Court takes judicial notice of the Deemed Admitted Order and the underlying court filings in connection with the Deemed Admitted Order.

Based upon the Deemed Admitted Order, it is evident that Defendant has been deemed to admit to the fact of the subject debt and the amount owing, \$8,536.02.

Those admissions are binding upon Defendant for purposes of a motion for judgment on the pleadings. *Myers v. Trendwest Resorts, Inc.* (2009) 178 Cal.App.4th 735, 746 (“Judicial admissions may be made in a pleading, by stipulation during trial, or by response to request for admission.”).

Disposition

The Court finds and orders as follows:

1. The Motion for Judgment on the Pleadings is GRANTED.
2. Plaintiff shall file Order.

4. 9:00 AM CASE NUMBER: L24-10399
CASE NAME: DISCOVER BANK VS. LUIS MUNOZ SARABIA
HEARING IN RE: MOTION TO ENTER JUDGMENT PURSUANT TO STIPULATION, MEMORANDUM OF POINTS AND AUTHORITIES AND DECLARATION OF COUNSEL FOR PLAINTIFF AND ITS ACCOMPANYING EXHIBITS
FILED BY:

TENTATIVE RULING:

Plaintiff filed this Motion on 2/5/26, which was originally scheduled to be heard on 5/19/26. However, on that day, this court found that Plaintiff failed to properly notify the Defendant, and continued the matter to 8/18/26, 9am. This court ordered Plaintiff to properly notify the Defendant.

Apparently, nothing has been done in that respect.

Disposition

This matter will be dropped.

5. 9:00 AM CASE NUMBER: L25-00293
CASE NAME: CROWN ASSET MANAGEMENT, LLC VS. HAROLD MOSES
***HEARING ON MOTION IN RE: TO VACATE DEFAULT JUDGMENT**
FILED BY: CROWN ASSET MANAGEMENT, LLC

TENTATIVE RULING:

Plaintiff filed a Motion to set aside the default judgment, contending that Defendant was not properly served with notice of process, under Section 473 of the CCP.

Disposition

The court grants this Motion under 473(d) of the CCP.

Plaintiff to file Order, and to serve notice of Order on Defendant.

Defendant to file Answer within 30 days of receipt of written notice of this Order.

6. 9:00 AM CASE NUMBER: L25-01000

CASE NAME: CAPITAL ONE N.A. VS. AURORA DIAZ

***HEARING ON MOTION IN RE: TO VACATE DISMISSAL AND ENTER JUDGMENT UNDER TERMS OF STIPULATED SETTLEMENT**

FILED BY: CAPITAL ONE N.A.

TENTATIVE RULING:

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed.

Mail service was completed at an address for the Defendant where she was personally served with notice of the Summons and Complaint.

Though Defendant never filed an Answer, she did enter into a Stipulation with Plaintiff on this very matter, showing, by a preponderance of the evidence, that she was aware of this litigation. Defendant has made no effort to file a change of address with the court, nor indicate in any other way that the mailing address listed in the attachment to the Complaint is incorrect. Thus, the court finds that Defendant was properly noticed of this Motion.

Analysis

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$6,710.94, plus costs, and less any credits for payments received.

The agreement was filed with the court.

The case was then dismissed.